

TENTATIVE RULING:

Plaintiff John Roe A.H. seeks to compel compliance with a business records subpoena served on Silicon Valley Monterey Bay, Scouting America (SVMBSA). The Court received no opposition by any Defendant or from SVMBSA.

This case involves alleged childhood sexual abuse by a teacher. This teacher was previously involved with SVMBSA, and so Plaintiff has sought records relating to allegations of sexual abuse against minors while involved with SVMBSA.

The subpoena sought “(1) all employment and volunteer records, including reprimands, complaints, claims, payroll records, commendations, recommendations, disciplinary actions, termination or dismissal records, approvals, applications, communications, documents, reviews, notations, personnel files, demands, performance evaluations, credentials, and photographs; and (2) all yearbooks, photographs, troop lists, or other documents reflecting programs in which Guinto participated from 2005 through 2010.”

SVMBSA responded by producing “screenshots of limited personnel records, a civil complaint, and a 2008 Santa Clara County Council roster.” SVMBSA failed to respond to meet and confer efforts.

SVMBSA’s response was clearly deficient. The Court has concerns that aspects of the second request may implicate privacy rights of third parties, including minors, and so cannot compel full compliance. Otherwise, however, SVMBSA must produce all relevant, responsive documents without redactions. In other words, SVMBSA must produce all documents called for in the subpoena, but may redact names and pictures of minors, subject to further discussions involving a protective order if Plaintiff provides compelling reasons for limited discovery of such information.

Plaintiff also seeks sanctions in the amount of \$3,060.00. The proffer for this amount is reasonable and will be granted.

6. 9:00 AM CASE NUMBER: C25-00481
CASE NAME: MAURO OILVA VS. AMERICAN HONDA MOTOR CO., INC.
***HEARING ON MOTION IN RE: STRIKE OR TAX COSTS**
FILED BY: AMERICAN HONDA MOTOR CO., INC.

TENTATIVE RULING:

Defendant American Honda Motor Co. (Honda) moves to strike, or in the alternative, tax costs. Plaintiff Mauro Oilva accepted Honda’s offer to compromise pursuant to Code of Civil Procedure section 998. Plaintiff has since filed a Memorandum of Costs in the amount of \$2156.60 and a Motion for Attorney’s Fees, which is set for hearing on September 17, 2026.

Honda disputes five costs:

- (1) \$5.95 in filing and motion fees, for the Notice of Settlement

(2) \$150.00 for the jury fees deposit

(3) \$79.50 for service of process for a deposition that ultimately did not proceed

(4) \$10.25 for electronic filing and service fees

(5) \$1,070.00 for mediation (\$920.00) and court appearance professionals (\$150.00)

The party filing the cost memorandum bears the initial burden of showing that the statute allows the item and is proper on its face. (*Ladas v. California Sate Auto. Assn.* (1993) 19 Cal.App.4th 761, 774-776.) For items that are expressly permitted by statute, the burden is on the objecting party to establish that the costs were not necessary or reasonable, based on evidence. (*Litt v. Eisenhower Med. Ctr.* (2015) 237 Cal.App.4th 1217, 1224.) For items that are not expressly allowed, the burden of proof is on the party claiming them to show that they were reasonable and necessary. (*Foothill-DeAnza Community College Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 29.)

The Court addresses each contested cost in turn.

Filing and Motion Fees

Honda moves to strike or tax only one item from this category. Honda argues that the filing of the Notice of Settlement was not part of the “commencement and prosecution” of the action. The Court does not agree. The Notice of Settlement was part of the litigation process—notifying the Court that the case would no longer proceed. This minimal cost was not excess or inappropriate and it is a normal cost of litigation. The Court declines to tax or strike this cost.

Jury Fee Deposit

Honda argues that because the case did not proceed to trial, the posting of jury fees was not a recoverable cost. The Code of Civil Procedure requires an advance jury fee deposit, and this is part of the requirement for jury fees. Honda does, however, identify that jury fee deposits are refundable. Oilva’s failure to request this refund should not be shifted to Honda. The Court will tax this cost.

Service of Process

Honda seeks to tax \$79.50 for service of a deposition notice where it was “unilaterally noticed without any meet and confer effort.” Honda has not explained why this renders the cost not recoverable under the Code of Civil Procedure. The Court declines to tax or strike this cost.

Electronic and Service Costs

Honda argues that \$10.25 was improperly claimed but does not explain why. It appears this was the electronic service of the Notice of Settlement. As discussed above, this was part of the litigation and will not be taxed.

Oilva, in the opposition, discusses costs related to courtesy copies served on the Court, but Honda’s argument regarding these costs was buried in a footnote. That hardly serves to carry its burden and

the Court declines to tax these costs.

Other Costs

Honda seeks to task costs related to specially appearing attorneys on two occasions, for \$75.00 each. While Oilva argues that these costs are less than would be incurred by attorneys appearing on their own behalf, Honda is correct that these are properly categorized as attorney's fees, not costs, and they will be taxed.

Honda also seeks to strike the \$920.00 sought for the mediation both because the parties, in agreeing to the mediation, agreed to bear their own costs, and because the mediation had multiple cases. On the first issue, the Court does not see an initial agreement to split the cost of mediation as precluding the cost as recoverable at the close of litigation. On the second issue, the Court agrees that Plaintiff may not gain the benefit of splitting a mediation fee with another case but recover the entire amount in a single litigation. That the invoice identified this case is insufficient to carry Plaintiff's burden. The Court will tax half of the \$920.00.

The Court therefore will tax \$760 of the costs memorandum.

7. 9:00 AM CASE NUMBER: C25-02093
CASE NAME: YOSALIN GONZALEZ VS. WESTERN STONE & METAL CORP.
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: MICHAEL FREIMAN, ESQ.**
FILED BY: GONZALEZ, YOSALIN
TENTATIVE RULING:

The Court has reviewed the Motion and it is **granted**.

8. 9:00 AM CASE NUMBER: C25-02588
CASE NAME: COOL BEANS ENTERTAINMENT LLC, VS. CHRISTINE SORIANO
***HEARING ON MOTION IN RE: PRELIMINARY INJUNCTION**
FILED BY: COOL BEANS ENTERTAINMENT LLC,
TENTATIVE RULING:

Counsel to appear (in person or by Zoom).

This is a Preliminary Injunction motion centering on control and operation of several residential care facilities for elders. What caught the Court's attention is the point that both sides are proposing the same structural solution – namely, the hiring of professional third-party management companies to run the facilities (and their immediate finances) pending litigation.

At the June 25, 2026, hearing the Court directed the Parties to provide an update of their Meet and Confer Process by July 16, 2026.

The Parties on July 16, 2026, submitted a joint statement which provided that the Parties were actively evaluating potential options, making progress in their discussions, and would provide a